

★ STATE OF TEXAS ★
RIGHTS PROTECTION STANDARD

Privacy and Civil Liberties Safeguards
for AI-Assisted Public Surveillance

Rights Protection Framework for Smart City Crowd Analytics Deployments

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Section 1 — POLICY STATEMENT AND RIGHTS FRAMEWORK

The State of Texas recognizes that the deployment of AI-assisted public surveillance technologies carries an inherent risk of impinging upon constitutionally protected rights, including the right to free assembly (U.S. Const. amend. I), freedom from unreasonable search and seizure (U.S. Const. amend. IV; Tex. Const. art. I, §9), equal protection (U.S. Const. amend. XIV; Tex. Const. art. I, §3a), and the right to privacy recognized by the Texas Supreme Court.

This policy establishes non-waivable safeguards ensuring that the Smart City Public Safety Platform's crowd analytics capabilities are used exclusively for their stated public safety purpose and do not serve as instruments of political surveillance, discriminatory enforcement, or chilling of constitutionally protected activity. These protections are complementary to — and shall not be construed to limit — any rights afforded by federal or state law.

The Texas Office of the Attorney General (OAG) Privacy and Data Security Division shall serve as the independent oversight authority for this policy. Any person who believes their rights have been violated under this policy may file a complaint with the OAG at no cost.

Section 2 — PROTECTED ACTIVITIES AND CATEGORICAL PROHIBITIONS

The following activities shall never be targeted for enhanced monitoring, alert threshold reduction, increased data retention, or any other use of SCPSP capabilities beyond normal city-wide operations:

- Lawful protests, demonstrations, marches, or political rallies — including those occurring in normally monitored public spaces
- Religious gatherings in public spaces, including open-air services and religious processions
- Labor union organizing activities, strikes, and picketing
- Journalism, newsgathering, and media activities in public spaces
- Constitutionally protected expression, including political speech, artistic performance, and advocacy
- Activities by advocacy organizations, non-profit organizations, or civic associations
- Any activity on the basis of the race, color, religion, national origin, sex, sexual orientation, gender identity, disability status, or immigration status of participants

Critical Protection: SCPSP crowd density alerts shall be based exclusively on objective, content-neutral crowd count thresholds. Threshold values shall be identical across all zones of the same type (crowd_density, pedestrian_only, restricted_zone) within a municipality. Differential thresholds based on the nature of the gathering are expressly prohibited and constitute a violation of this policy subject to enforcement action by the OAG.

Section 3 — COMMUNITY OVERSIGHT AND ACCOUNTABILITY MECHANISMS

3.1 Surveillance Technology Oversight Board

Each municipality with population exceeding 250,000 that deploys SCPSP infrastructure shall establish or designate a Surveillance Technology Oversight Board (STOB). The STOB shall include:

- Minimum of seven (7) members — no more than two (2) of whom shall be active law enforcement officers
- At least two (2) members representing civil liberties or privacy advocacy organizations
- At least one (1) member representing communities historically affected by over-policing
- At least one (1) independent technology expert with AI/ML systems background
- At least one (1) representative from each of the following: faith community, disability community, immigrant rights community

The STOB shall: (a) review and approve all SCPSP deployments in new zones before activation; (b) conduct quarterly public meetings to review system usage statistics and community concerns; (c) issue an annual public report with findings and recommendations; and (d) have authority to recommend suspension of system operations to the city council pending investigation of alleged violations.

3.2 Transparency Reports

All covered entities shall publish semi-annual Surveillance Transparency Reports on their public websites, containing the following information:

Required Disclosure	Publication Format	Publication Deadline
Total number of CRITICAL alerts by zone type (aggregated)	Tabular summary — public website	Within 60 days of period end
Number of alerts that resulted in law enforcement dispatch	Count only; no location specificity below neighborhood level	Within 60 days
Number of alerts acknowledged vs. auto-dismissed	Count and percentage by severity	Within 60 days
Any instances of data sharing with external agencies	Agency names; data types shared; legal authority cited	Within 30 days of each sharing event
Privacy Impact Assessment status and any material findings	Summary only; full PIA available upon request	With each biannual report
Number of civil rights complaints received and resolution status	Count; resolution categories (sustained/not sustained/pending)	Within 60 days
System downtime and maintenance events affecting monitoring capability	Duration and affected zones (anonymized)	Within 60 days

Section 4 — INDIVIDUAL RIGHTS AND REDRESS MECHANISMS

Individuals who believe they have been adversely affected by the operation of SCPSP systems have the following rights, enforceable under Texas law:

- **Right to Information:** Any person may submit a Texas Public Information Act (TPIA) request to obtain records of the system's data retention policy, PIA, and anonymized aggregate statistics for any zone. Individual-level data is not retained; this limitation shall be documented in the TPIA response.
- **Right to Complaint:** Any person may file a civil rights complaint with the OAG Privacy Division at no cost. Complaints alleging discriminatory deployment or unauthorized use shall be investigated within 90 days.
- **Right to Correction:** Any operator who receives an AI-generated incident report that contains factual errors may request correction through the agency's records correction procedure. Corrections to law-enforcement-sensitive records require supervisor approval.
- **Right to Challenge Automated Decisions:** No adverse legal action (arrest, citation, exclusion from public space) shall be taken based solely on an AI-generated alert without human review and authorization by a qualified supervisor. This right is non-waivable.
- **Right to Notice of Data Sharing:** When SCPSP event data related to an active law enforcement case is shared with federal agencies, the relevant law enforcement agency shall document the sharing in the case file accessible to defense counsel through normal discovery procedures.

Section 5 — ALGORITHMIC EQUITY AND BIAS MITIGATION

Covered entities shall conduct an Algorithmic Equity Impact Assessment (AEIA) upon initial deployment and annually thereafter. The AEIA shall evaluate whether SCPSP alert patterns exhibit statistically significant disparities across communities defined by race, ethnicity, income level, or neighborhood demographics that are not explained by population density or zone configuration differences.

If the AEIA identifies a statistically significant disparity (defined as a zone-level CRITICAL alert rate more than 1.5 standard deviations above the citywide mean that correlates with demographic composition at $p < 0.05$), the covered entity shall:

- Notify the STOB within 14 days of AEIA findings

- Review zone threshold configurations for potential bias (e.g., thresholds set inappropriately low for zones in historically over-policed neighborhoods)
- Engage an independent third-party AI auditor approved by the OAG within 60 days
- Implement corrective measures and document them in the next semi-annual Transparency Report
- Submit the third-party audit findings to the Texas Legislature's House Committee on Homeland Security and Public Safety

Section 6 — PROTECTIONS FOR VULNERABLE AND SPECIAL POPULATIONS

Additional protections apply when SCPSP monitoring zones are adjacent to or include areas frequented by vulnerable populations:

Population	Zone Proximity Restriction	Additional Safeguard
Minors (persons under 18)	Zones including K-12 schools, licensed childcare facilities	Prohibited deployment within school grounds; footage containing identifiable minors shall be deleted within 24 hours (technical safeguard required)
Persons experiencing homelessness	Zones regularly used as overnight shelter locations	Consultation with local homeless services providers required before deployment; threshold review to prevent discriminatory enforcement
Persons with disabilities	All zones	ADA-compliant signage required; STOB shall include disability community representative
Undocumented immigrants	All zones	Data shall not be shared with U.S. Immigration and Customs Enforcement (ICE) or CBP without a judicial warrant; covered entities are Texas 'sanctuary city' provisions compliant
Participants in confidential support services	Zones adjacent to domestic violence shelters, addiction recovery centers, HIV clinics	Prohibited deployment within 200 feet of facility entrance; no data sharing without court order

Section 7 — ENFORCEMENT, PENALTIES, AND REMEDIES

Violation of this policy by a covered entity or its officers, employees, or contractors may result in the following consequences, as determined by the Texas Attorney General following investigation:

- Administrative: Revocation of system Authorization to Operate (ATO); mandatory retraining of all operators; temporary suspension of SCPSP operations in affected zones
- Civil: Civil penalty up to \$10,000 per violation per day under Texas Business & Commerce Code §17.47; injunctive relief; mandated independent audit at covered entity's expense
- Criminal referral: Referral to the appropriate prosecuting authority for offenses constituting abuse of official capacity (Texas Penal Code §39.02) or unlawful interception (Texas Penal Code §16.02)
- Federal: Referral to U.S. Department of Justice Civil Rights Division for potential violations of 42 U.S.C. §1983 or Title VI of the Civil Rights Act
- Individual liability: Officers or employees who knowingly violate prohibited use provisions may be personally liable; covered entity indemnification may be denied for knowing violations

Section 8 — FILING A COMPLAINT

To file a complaint regarding potential violations of this policy:

- Online: Texas OAG Privacy Complaint Portal — oag.texas.gov/privacy
- Mail: Texas Office of the Attorney General, Privacy and Data Security Division, P.O. Box 12548, Austin, TX 78711-2548
- Phone: 1-800-252-8011 (toll-free, English and Spanish)

- TTY: 1-800-735-2989
- Complaints may be filed anonymously. Retaliation against any person for filing a good-faith complaint is prohibited and constitutes a separate policy violation.

Section 9 — APPROVAL AND SIGNATURES

This Rights Protection Standard is approved by the Texas Office of the Attorney General and supersedes any prior guidance on civil liberties protections for AI surveillance systems issued by covered entities.

Signature & Date

Attorney General of Texas

Texas Office of the Attorney General

Signature & Date

First Assistant Attorney General

Texas OAG

Signature & Date

Chief, Privacy & Data Security Div.

Texas OAG